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THE CONSTITUTION OF KENYA

THE INDEPENDENT ELECTORAL AND BOUNDARIES COMMISSION ACT

(Cap. 7C)

THE SELECTION PANEL FOR THE RECRUITMENT OF NOMINEES FOR APPOINTMENT AS THE CHAIRPERSON AND MEMBERS OF THE INDEPENDENT ELECTORAL AND BOUNDARIES COMMISSION

VACANCIES IN THE POSITIONS OF CHAIRPERSON AND MEMBERS OF THE INDEPENDENT ELECTORAL AND BOUNDARIES COMMISSION

WHEREAS Articles 88, 166 (3) and 250 of the Constitution of Kenya, sections 5 and 6 of the Independent Electoral and Boundaries Commission Act, (Cap. 7C) (referred to as the IEBC Act) and the First Schedule thereto, provide for the membership of the Independent Electoral and Boundaries Commission (IEBC) and the process of appointment of the Chairperson and Members of the IEBC;

AND WHEREAS by a *Gazette Notice* No. 1901 of 14th February, 2023 and by *Gazette Notice* No. 2643 of 1st March, 2023, His Excellency the President declared one (1) vacancy for the position of the Chairperson of the IEBC and six (6) vacancies for the position of Member of the IEBC;

FURTHER WHEREAS by a *Gazette Notice* No. 715 of 27th January, 2025, His Excellency the President appointed the Members of the Selection Panel for the Recruitment of Nominees for appointment as the Chairperson and Members of the IEBC;

NOW THEREFORE the Selection Panel for the Recruitment of Nominees for Appointment as the Chairperson and Members of the IEBC invites applications from qualified persons who satisfy the provisions of the Constitution, and the Independent Electoral and Boundaries Commission Act as follows—

1. CHAIRPERSON OF THE IEBC (Ref. SP/IEBC/1/2025)— ONE (1) VACANCY

PURSUANT to Article 166 (3) of the Constitution as read with section 6 (1) of the Independent Electoral and Boundaries Commission Act, a person is qualified for appointment as Chairperson of the IEBC if such person is qualified to hold the office of Judge of the Supreme Court under the Constitution, that is, the applicant must have—

- (a) at least fifteen (15) years' experience as a superior court judge; or
- (b) at least fifteen (15) years' experience as a distinguished academic, judicial officer, legal practitioner, or such experience in other relevant legal field; or
- (c) held the qualifications mentioned in paragraphs (a) or (b) for a period amounting, in the aggregate, to fifteen (15) years; and
- (d) met the requirements of Chapter Six of the Constitution.

FURTHER pursuant to Article 88 (2) of the Constitution, a person is not eligible for appointment as Chairperson of the IEBC, if the person—

- (a) has, at any time within the preceding five (5) years, held office, or stood for election as—
 - (i) a member of Parliament or of a county assembly; or
 - (ii) a member of the governing body of a political party; or
- (b) holds any State office.

2. MEMBER OF THE IEBC (Ref. SP/IEBC/2/2025)— SIX (6) VACANCIES

PURSUANT to section 6 (2) of the Independent Electoral and Boundaries Commission Act, a person is qualified for appointment as a Member of the IEBC if such person—

- (a) holds a degree from a recognized university;
- (b) has proven knowledge and at least ten (10) years' experience in any of the following fields —
 - (i) electoral matters;
 - (ii) management;
 - (iii) finance;
 - (iv) governance;
 - (v) public administration;
 - (vi) law;
 - (vii) information and communication technology; and
 - (viii) accounting.
- (c) meets the requirements of Chapter Six of the Constitution.

FURTHER pursuant to Article 88 (2) of the Constitution, a person shall be disqualified for appointment as a Member of the IEBC, if the person—

- (a) has, at any time within the preceding five (5) years, held office, or stood for election as—
 - (i) a member of Parliament or of a county assembly; or
 - (ii) a member of the governing body of a political party; or
- (b) holds any State Office.

APPLICATION PROCESS

- (a) Applications should be accompanied by—
 - (i) a detailed *curriculum vitae*;
 - (ii) certified true copies of academic and professional certificates;
 - (iii) a copy of the applicant's National Identity Card or Passport; and
 - (iv) testimonials and other relevant supporting documents.
- (b) Applicants shall be required to attach to their applications, current and valid clearances from the following bodies:
 - (i) The Kenya Revenue Authority;
 - (ii) The Higher Education Loans Board;
 - (iii) A Credit Reference Bureau;
 - (iv) The Directorate of Criminal Investigations; and
 - (v) The Ethics and Anti-Corruption Commission.

NB: The proviso to section 9 (5) of the Employment Act, (Cap. 226) states that "...an applicant for a state office shall provide compliance or clearance certificates at such times in the recruitment or approval process as they may be required".

- (c) Applications should be addressed to:

The Selection Panel for the Recruitment of Nominees for Appointment as the Chairperson and Members of the IEBC, P.O. Box 41842-00100, Nairobi.

- (d) Applicants must clearly indicate the reference number of the position they are applying for: CHAIRPERSON OF THE IEBC (Ref. SP/IEBC/1/2025) or MEMBER OF THE IEBC (Ref. SP/IEBC/2/2025);
- (e) Applications and supporting documentation may be—
 - (i) hand-delivered in a sealed envelope between 8.00 a.m. to 5.00 p.m. to the Secretariat of the Selection Panel for the Recruitment of Nominees for appointment as the Chairperson and Members of the IEBC, 3rd Floor, County House Building, Parliament Road; or
 - (ii) submitted online as a PDF file format attachment by emailing to iebcselectionpanel2025@parliament.go.ke;
- (f) All applications must be received on or before Saturday, 15th February, 2025 at 5.00 p.m. (East African Time).

IMPORTANT NOTICE

- (a) The names of all applicants and the interview schedule of those short-listed shall be published in the print media, the Kenya Gazette and on the Parliamentary Service Commission website www.parliament.go.ke.
- (b) Only short-listed candidates shall be contacted for interviews.

Dated the 1st February, 2025.

NELSON MAKANDA (Dr.),
Chairperson,

*The Selection Panel for the Recruitment of Nominees
for Appointment as the Chairperson and Members of the
Independent Electoral and Boundaries Commission.*